

TOWN OF NORTH CASTLE

ZONING BOARD OF APPEALS

15 Bedford Road, Armonk, NY 10504

November 2, 2023 7:30 p.m.

ZONING BOARD MEMBERS:

**Joseph Monticelli, Chairman
John L. Stipo
Robert Greer
Scott Stopnik
Ray Rodriguez**

ALSO PRESENT:

**Gerald Reilly, Esq. Town Counsel
Rob Melillo, Building Insp.
Lori J. Zawacki, Secretary**

The meeting was called to order at 7:30 p.m. Chairman Monticelli asked for a roll call. All members present except Robert Greer and Scott Stopnik.

Approval of Minutes

John Stipo made a motion to accept the minutes of October 5, 2023, and the motion was seconded by Ray Rodriguez.

The Chairman called for the first application.

REMIX PROPERTIES, LLC, 12 Maple Avenue, Armonk, NY 10504 and known on the Town Tax Assessment Maps as Section 108.01, Block 6, Lot 26 and located in a CB-A2 Zoning District. In order to obtain a site plan approval, the applicant will need the following variance:

Pursuant to Section 355-57 of the Town Code, 48 off-street parking spaces are required where 15 are provided, needing a variance of 33 off-street parking spaces.

The Secretary announced that the applicant had requested an adjournment to the December 7, 2023 meeting.

The Chairman called for the next application and the Public Hearing was opened.

ROBERT DISILVESTRI, 19 Maryland Avenue, Armonk, NY and known on the Town Tax Assessment Maps as Section 108.01, Block 3, Lot 31 and located in an R1A Zoning District.

In order to rebuild and enclose the existing entry porch, the applicant will need the following variances:

- 1. The minimum front yard setback per Section 355-21 of the Town Code is 50 feet, where 26.25 feet are provided requiring a variance of 23.75 feet.*
- 2. The minimum side yard setback per Section 355-21 of the Town Code is 25 feet, where 12.75 feet are provided requiring a variance of 12.25 feet.*

This application was represented by Robert DiSilvestri. He stated that they request the variance as the porch is existing and with their family and pets it makes it very convenient to come in and go out. They purchased the house last year and have been working on improvements since.

Victor Sierra the contractor on the project stated the porch is existing and they would like to close it in as a mudroom for the convenience of the homeowner as an entry to hang coats and bring in their dogs. The foot print is there.

Mr. Stipo asked how long has it been there?

Mr. Sierra stated since the house was built.

Chairman Monticelli stated the variances are 50 %.

Mr. Stipo stated yes but it is non conforming as it exists.

Mr. Sierra stated they are not asking to add to the nonconformity of the house.

Mr. Reilly stated when you enhance the nonconformity you need to come before the ZBA to fix same.

Mr. Rodriguez asked about any encroachment on a neighbor.

Mr. Sierra stated that they were not encroaching at all on any neighbor.

Mr. Stipo stated he would like the condition in the resolution to be for the porch and no other sections of the house.

The Charman asked if there were any more questions or anyone from the Public who wanted to speak.

There were non and the Public Hearing was closed.

Mr. Stipo made a motion to approve.

Mr. Reilly stated what I have heard here is that this will not change the character of the neighborhood. It is substantial, but it is due to how this house is situated on the property. The entire property is non- conforming. The existing porch is non-conforming and what the

applicant is doing from questions from the Board is that they are just enclosing it and not expanding it. The alternative is not to enclose it and when you weigh the factors the benefit to the applicant outweighs any detriment to the neighbors and the community.

Mr. Stipo adopted Mr. Reilly's findings and made a motion to approve both variances.

The motion was 2nd by Ray Rodriguez.

Roll call by the Secretary: John Stipo- Yes, Ray Rodriguez – Yes and Joseph Monticelli – Yes. The variances were granted by a unanimous vote of 3-0.

The Chairman called for the next application and the Public Hearing was opened.

JOEL BELTRAN, 22 General Heath Avenue, N. White Plains, NY 10603 and located in a R5 Zoning District. In order to construct the proposed rear deck, the applicant will need the following variance:

The minimum combined side yard setback (rear deck) per Section 355-21 of the Town Code is 18 feet where 14.3 feet are provided, requiring a variance of 3.7 feet.

This application was represented by John Whalen the Architect on the project. The owner Mr. Joel Beltran was also present with his son.

Mr. Whalen stated that they are requesting the variance for the non conforming side set back.

Mr. Stipo asked is all this currently existing?

Mr. Whalen stated yes and there is no negative impact on anything or anyone.

There was a short discussion about a request for a front yard variance as Mr. Whalen talked about front setbacks. It was determined there is only a need for the side yard variance.

Mr. Whalen brought up additional paperwork and the Secretary stated the Board has all the required paperwork.

Chairman Monticelli asked if there were any more questions from the Board or anyone from the Public.

Mr. Stipo asked are you doing any more construction.

Mr. Reilly stated you are currently non conforming and increasing the non conformity by this deck.

There was a short discussion about any other work and how it was not affecting the variance that requested here tonight and that no other variances were required.

The Public Hearing was closed.

Ray Rodriguez made a motion to approve the variance.

Mr. Reilly stated that this is not substantial, and it is clear from the applicant and the questions from the Board that they are putting a deck where there was a slab and no closer to the building. It is already non-conforming. The alternative is to leave the slab there. It does not affect or impact any neighbors and there have been no objections. There is no negative impact to the Community and given all those factors I suggest someone make a motion to approve.

Mr. Rodriguez adopted Mr. Reilly's findings and made a motion to approve the variance.

The motion was 2nd by John Stipo.

Roll call by the Secretary: John Stipo – Yes, Ray Rodriguez – Yes and Joseph Monticelli – Yes.

The variance was granted by a unanimous vote of 3-0.

The Chairman called for the next application and the Public Hearing was opened.

BRIAN & AMY TOWERS, 1 Fox Run, Armonk, NY and known on the Town Tax Assessment Maps as Section 100.03, Block 1, Lot 9 and located in a R2A zoning District. In order to install the proposed generator, the applicant will need the following variance:

Pursuant to Section 355-21 of the Town Code the minimum side yard setback is 50 feet where 41.9 feet are provided requiring a variance of 8.1 feet.

This application was represented by Michael Cardosa, contractor for project.

Mr. Cardosa stated they would like to remove an existing generator on the property and replace with a larger one about 18 feet over from the original. The new one doesn't fit where the old was located as the land drops off and then down. A lot of the property is gullies and this is the only spot where we can put a concrete pad.

Mr. Reilly asked if both locations were on the plan.

Mr. Cardosa stated yes and advised where to look.

Mr. Rodriguez asked if it would require additional propane tanks.

Mr. Cardosa stated no, they are using the existing propane tanks.

There was a short discussion about a variance needed for existing propane tanks. It was determined only the new generator. The size and additional needs for the generator were discussed.

Chairman Monticelli asked if there were any more questions from the Board or anyone from the Public?

There were none and the Public Hearing was closed.

Mr. Stipo made a motion to approve the variance.

Mr. Reilly stated Mr. Stipo has made a motion to grant the variance. It is not a substantial variance, 16% and there is an existing generator there being replaced by a more efficient one. The alternative is to move the generator into a place where it does not belong. There is no negative impact and no complaints from any neighbors. There is no impact on neighbors or the Community and for these reasons I suggest someone make a 2nd to Mr. Stipo's motion.

Mr. Stipo adopted Mr. Reilly's findings and made a motion to grant the variance.

The motion was 2nd by Ray Rodriguez.

Roll call by the Secretary: John Stipo- Yes, Ray Rodriguez – Yes and Joseph Monticelli – Yes. The variance was granted by a unanimous vote of 3-0.

The Chairman called for the next application and the Public Hearing was opened.

ALESSANDRO MAIDA, 298 Bedford Banksville Road, Bedford, NY and known on the Town Tax Assessment Maps as Section 95.01, Block 2, Lot 51 and located in an R2A Zoning District. In order to construct the proposed addition of a 3-car garage, porch and patio, the applicant will need the following variance.

The maximum gross land coverage permitted per Section 355-26C is 22,803 sq. ft., Where 32,342 sq. ft. are provided requiring a variance of 9,539 sq. ft.

This application was represented by Paddy Steinschneider from Gotham Design Planning & Development Ltd.

Mr. Steinschneider stated the applicants purchased the property up on the top of a mountain with 4 acres. The house is however in poor shape and needs to be rebuilt. The owner is a contractor and can certainly make this a beautiful home for a growing family. They need large space for a large family. We only need the one coverage variance and the circumstance is how the site is configured.

Mr. Steinschneider explained the project as they were adding 1193 sq. ft. to the main house and a 3 car garage and some porches. When considering the gross land coverage 14,350 sq. feet are consumed by the driveway and existing tennis courts. The property is difficult to see from

anywhere winter or summer and sits high on a hill with a lot of woods between any neighbor. We try to think what we can do to not adversely affect anyone with storm water run off particularly those down on the bottom of the slope. Privacy for all is also important. There will be a very extensive landscape plan and very robust stormwater plan to capture all water from a 100 year storm and deal with it on sight so there is no run off. He stated he didn't feel there were any negative factors on the balancing scale for granting variances. A nice house there would be a benefit to the community and will fit in well in the neighborhood. 64% of the coverage has nothing to do with the property they are using as mentioned earlier. Mathematically the variance is substantial, however looking at the issues there are no adverse impacts.

Chairman Monticelli asked if they are living on the property now.

The owner Mr. Maida stated no.

Charmain Monticelli asked how big were the additions?

Mr. Steinschneider stated they are adding 1193 sq. ft. to the house.

There was a short discussion about the square feet added by the garage and the fact that the existing sweeping driveway and tennis courts accounted for almost 64% of the total coverage. The amount of the variance includes land coverage that already exists.

Mr. Rodriguez asked if there is an existing 2 car garage why a new 3 car garage?

Mr. Steinschneider stated the owner will use the existing 2 car garage for his office. The 3 car garage is for the house with attic space above for the children.

Mr. Reilly stated neither the existing or the new garage will be made into living space?

Mr. Steinschneider stated No.

Mr. Rodriguez stated it looks like the existing already has living space in it.

Mr. Steinschneider stated it does, but that will be made into the office for the owner's business and will not be living space.

Mr. Reilly asked will the project include an accessory apartment?

Mr. Steinschneider stated no.

Mr. Reilly stated that this would be included in the resolution that it is a one family house with no accessory apartment and the existing garage be converted into an office and a new 3 car garage with attic above it

Noticed neighbor Marie McIntyre Tracy who is a partner along with her mother who lives directly down the hill from the applicant's property. The variance is substantial at 39% from my

calculations. Our main question is whether the water mitigation system proposed will address the water runoff from the property. As it is currently, in heavy rainstorms water runs down the hill to our house to the driveway. We realize the property is already over code but we have the right that our property be free of water run off and assurance of this system will do this. We are thrilled to have new neighbors and have a good set up there, but need to understand how this system works. If a pool is ever installed will this system handle it.

Mr. Reilly called on the Building Inspector to handle the water runoff issue.

Mr. Melillo stated that will be by Town Code and reviewed by the Engineering Department. No permit will be issued without this. The Code is any water over 250 sq. ft.

There was a short discussion between Mr. Steinschneider and Ms. McIntyre Tracy where he pointed out her property and how that property could be affected. He is very versed and concerned with these issues. He explained how all runoff needs to be captured to avoid issues and sometimes the best way is not to put it in the ground. We have a robust Cultec system a series of containers with gravel. We will also capture any site water and use for rain gardens and landscaping. He explained in detail how other systems he has worked on have been successful. He said it takes a lot but it can be done. The runoff water that went into their house was again discussed. The Chairma asked if after this project will it be ok for the neighbor. Mr. Steinschneider stated that if they get to do what they propose it will be better than it is now. Excessive rain was discussed.

Mr. Melillo stated that the applicant is proposing more than what is required by the Town Code. They are going above and beyond. He is choosing to spend more money to make things right.

Ms. McIntyre asked if anytime there is an ancillary residence put into this place will we be notified for a special permit.

Mr. Reilly explained the procedure the applicant and even a future owner would have to take in order for something like that to happen. The applicant has stated that there is going to be no accessory apartment if he gets his variance and goes on with his construction.

Ms. McIntyre asked about any large trucks coming in and out.

Mr. Rodriguez asked if she was worried about the loud noise from trucks.

Ms. McIntyre stated that the driveway sweeps right around her property and close to their deck. I am sure we will see during construction but later on we would not want that.

Mr. Maida answered her and said he has only 1 work truck that he uses to go back and forth to his jobs.

Ms. McIntyre thanked all present for their help and concern for her issues and her Mom will be happy to have a neighbor.

The Chairman asked if there were any other questions and there were none.

The Public Hearing was closed.

Ray Rodriguez made a motion to grant the requested variance.

Mr. Reilly stated a motion to grant has been made by Mr. Rodriguez. It is a substantial variance but the property is unique and has existed that so much of the property covered is driveway and a tennis court which is pre-existing and in violation of the land coverage already. We have heard from the applicant, the questions from the Board and the Building Inspector that the issue of coverage involved is water runoff and the plans submitted to Building Department and reviewed and approved by the Engineering Department will make this situation better under this new project than already exists. The coverage is enhanced from adding a 3 car garage and keeping an existing 2 car garage as a office. The applicant has agreed that a condition of the granting of this variance that there will be no more accessory apartment on this property without the approval of the Town Board or this Board. There will be no residence other than in the house. This will be an enhancement to the neighborhood rather than a detriment. The alternative is to leave it the way it is and apparently there is water runoff coming down from this property and the entire property has to be renovated. For all these reasons I suggest someone to second Mr. Rodriguez's motion to grant the variance.

The motion was 2nd by John Stipo.

Roll call by the Secretary Ray Rodriguez – Yes, John Stipo – Yes and Joseph Monticelli – Yes. The variance was granted by a unanimous vote of 3-0.

Ray Rodriguez made a motion to adjourn the meeting and it was 2nd by John Stipo.

Respectfully submitted,

Lori J. Zawacki